**IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA**
**CRIMINAL DIVISION**

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| COMMONWEALTH OF PENNSYLVANIA ,<br>*Plaintiff,*<br>v.<br>LASHADA LEE,<br>*Defendant.* | **No.: CP-28-CR-594-2023**<br>**NOTICE OF MOTION** |

TO THE ATTORNEY FOR THE COMMONWEALTH:

PLEASE TAKE NOTICE that upon the accompanying Motion, and upon all the prior proceedings had herein, the Defendant, Lashada Lee, pro se, will move this Honorable Court before the Honorable Judge Presiding, on October 29, 2026, at the Franklin County Courthouse, Chambersburg, Pennsylvania, for an Order granting the relief requested in the attached Pro Se Pretrial Omnibus Motion.

The grounds for this Motion, as more fully set forth in the attached Motion, Declarations and memorandum of law, are as follows:

1. That the Charges against Defendant Lashada Lee of two counts of Interference with Custody under 18 Pa.C.S.§2904 are without legal foundation and should be dismissed;

2. That Defendant Lee did not commit the crime charged in the criminal information;

3. That the out-of-state order upon which the Commonwealth relied as foundation for the charges was not an order entered by a court of competent jurisdiction as defined by law; and

4. That Pennsylvania law does not provide for enforcement of a court order made without notice and opportunity to be heard because such an order is ***void ab initio*** and a legal nullity.

WHEREFORE, the Defendant respectfully requests that this Court grant the relief requested herein and schedule a hearing on this matter if necessary.

Dated October ____ , 2026 Respectfully submitted,

Lashada Lee, pro se
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Silver Spring MD 20910
240-510-8562; LashadaLee03@aol.com

**COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA**
**CRIMINAL DIVISION**

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| COMMONWEALTH OF PENNSYLVANIA ,<br>*Plaintiff,*<br>v.<br>LASHADA LEE,<br>*Defendant.* | **Docket # No.: CP-28-CR-594-2023**<br><br>**ORDER** |

AND NOW, this ____ day of _____, 20___, upon consideration of Defendant's Pro Se Omnibus Pretrial Motion for Relief, it is hereby ORDERED and DECREED that:

1. The Criminal Information for two felony counts of Interference with Custody under 18 Pa.C.S.§2904 is hereby dismissed, vacated, and discharged; and

2. Defendant's bond, if any, is canceled or refunded; and;

3. A hearing on the remaining requests in Defendant's Omnibus Pretrial Motion is scheduled for the ____ day of _____, 20___, at _____ .m., in Courtroom No. _____ of the Franklin County Judicial Center.

BY THE COURT:

_____

J.

**COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA**
**CRIMINAL DIVISION**

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| COMMONWEALTH OF PENNSYLVANIA ,<br>*Plaintiff,*<br>v.<br>LASHADA LEE,<br>*Defendant.* | **Docket # No.: CP-28-CR-594-2023**<br><br>**Defendant's Pro Se Omibus Pretrial Motion** |

# Defendant's Pro Se Omnibus Pretrial Motion to Dismiss Criminal Information and Habeas Corpus Nunc Pro Tunc Pursuant to Pa.R.Crim.P. 578 579 and 18 Pa.C.S. §2904 with **Incorporated Motion for Leave to File Out of Time**

AND NOW, comes the Defendant, Lashada Lee, pro se, and respectfully files this Omnibus Pretrial Motion for Relief pursuant to Pennsylvania Rules of Criminal Procedure, Rule 578 and Rule 579, and in support thereof respectfully represents as follows:

## Preliminary Definitions for Clarity

Being pro se and unfamiliar with the legal terminology, Defendant will define some of the terms to be used in this document so as to avoid misspeaking or using the incorrect terms.

1. The criminal information against Defendant and the two felony charges brought against Defendant by that criminal information in this Court will be referred to as "the Charges" or "this Case";

2. The Franklin County Prosecutor's Office will be referred to as "the DA";

3. The Franklin County Public Defender's Office will be referred to as "the PD";

4. The divorce/custody case Lashada Lee v. John A. Rex in Washington County, MD, #C-21-FM–18-000164, will be referred to as the "MD Custody Case";

5. The March 17, 2020 "Emergency Motion" filed by the "Best Interests Attorney" Erika Barrett Johnson Esq. in the MD Custody Case will be referred to as the "BIA's Motion";

6. The report attached to the "BIA's Motion" written by Dr. L. Alexandra Mirabelli" will be referred to as the "Mirabelli Report";

7. The March 17, 2020 Ex Parte Custody Order entered by the Washington County, Maryland Circuit Court, granting the BIA's Motion in the MD Custody Case will be referred to as "the 2020 EPO."

8. The federal law governing jurisdiction over interstate custody cases, 42 USC §1738A will be referred to as the "PKPA"; and

9. The Uniform Code adopted by the several states to govern jurisdiction in interstate custody disputes will be referred to as the "UCCJEA."

# I. JURISDICTION AND TIMELINESS

Defendant has good cause for filing this motion on a date well past 30 days after the arraignment, and for filing it pro se. She therefore respectfully asks this Court to waive the 30-day requirement or extend the time for filing this Motion and to accept and hear this Motion **nunc pro tunc** for good cause shown and in the interests of justice.

Pretrial Motions to dismiss indictment (and/or for other relief) should be made within 30 days after arraignment. Pa.R.Crim.P.579(A). The Court may, however, extend that time to accept such a motion for good cause shown. Defendant respectfully shows good cause as follows:

## 1. First good cause – Ineffective assistance of counsel:

When Lee was first charged, she was without funds so her first defense attorney was appointed by the Commonwealth: Mr. Enoch Jones, formerly with the PD's office but now with the DA's office. He was appointed in time to file a Motion to Dismiss but failed to do so. According to Lee, his representation was limited to trying to convince her to accept an unacceptable plea deal being strenuously promoted by the DA. It is possible that Mr. Jones experienced a "quasi-conflict" situation in view of the fact that he has since joined the DA's office. He did not try to obtain exculpatory evidence (the child sex abuse evidence from both Maryland and Florida, the legal flaws of the purported custody order from Maryland, etc.) because he did not intend to take the case to trial. His emphasis was on pressuring Defendant to plead guilty in exchange for a probationary sentence he presented as rea-

sonable in spite of Defendant's strong opposition to its terms. (Please see attached Declaration of Lashada Lee in Support of this Motion.)

Faced with this situation, Lee hired private counsel Sherry Cooper, Esq. ("Cooper"), who may have assumed that, since more than 30 days had expired long before she was hired, no pretrial motion was available. Cooper began to prepare for trial but then told Lee that she would not appear at trial herself, assigning a young associate instead. Frightened by this, Lee replaced her with Michael Walker, Esq., who not only failed to try to get the case dismissed, but also refused to prepare for trial and instead tried to force Lee into a plea deal considerably worse than what the PD had initially proposed. This Court relieved him as counsel on September 3, 2026 in open court.

As a result of the sequence of attorneys, none of whom apparently investigated the case carefully enough to see that a Motion to Dismiss should have been filed because of the egregious nature and fundamental flaws in the Charges (based on an out-of-state order made without subject matter OR personal jurisdiction, which denied Lee due process and was specifically precluded from enforcement under Pennsylvania law), three years of delay unfolded before Defendant stood before this Court without representation on September 3, 2026. Up until that point in time, Lee had relied upon her attorneys completely and had not done her own research into the law of the Commonwealth applicable to her case. So she has had to rush to "come up to speed" in her own defense and begs the Court's indulgence in making this Motion to rehabilitate her rights at this late date. She did not and could not have known about pretrial motions such as this Motion before the September 3, 2026 court date.

Since the third of September, finding herself pro se, and while

still trying to hire new counsel, Lee consulted friends, relatives, etc. for advice. One of these sources, an attorney in another state, asked why none of her attorneys had filed a pretrial motion to dismiss the indictment, so Lee began to do research online and in the local courthouse law library. (Please see attached Declaration of Michelle Etlin in support of this Motion.)

As Lee researched issues of notice, opportunity to be heard, interstate custody orders, enforcement of custody orders in "sister states," the PKPA, the UCCJEA, parental rights, etc., she became aware of many things none of her attorneys had told her. In 2024, Lee had attended a conference in New York on custody issues arising in families where domestic violence was involved, etc. (the "16th Annual Battered Mothers Custody Conference, Albany, New York, April 2024), so she contacted some of the people she met at that conference for more guidance and, on or about September 8, 2026, Lee learned that there actually was such a thing as a Motion to Dismiss Indictment, which could obviate the need for a trial. Not until September 16, 2026, however, did Lee discover that the time to make such a motion in this case had expired 30 days after arraignment. Since then, Lee has worked diligently to be able to file this Motion in proper form.

## 2. Second good cause – The Motion is Meritorious:

The criminal information charges Lee under 18 Pa.C.S.§2904, that she knowingly or recklessly took or enticed her children from their lawful custodial parent without the privilege to do so. She did not do that. Instead, Lee ***responsibly*** took her children to safety while she was their ***lawful custodial parent herself***, with not only the ***privilege*** and the right, but the obligation to do whatever was

needed in order to not commit the crime of child endangerment (codified in both Pennsylvania and Maryland law). The four elements of the charges brought by the Commonwealth are:

(1) that on March 17, 2020, Lee lacked the legal privilege to take her children away with her;

(2) that she nevertheless took them — **from** someone who was their lawful custodial parent;

(3) that she did so knowingly or recklessly; and

(4) that she did so in violation of a custody order made by a court of competent jurisdiction.

None of these necessary elements was present on March 17, 2020, so the Commonwealth will not be able to prove its case. A Motion should have been filed long ago to that effect. The true situation was:

(1) On March 17, 2020, Lee was, and had been at all times pertinent, joint legal custodian of her children, and she had both residential and physical custody pursuant to a valid, enforceable order entered by a court of competent jurisdiction in 2019; she had decision-making power and was not subject to any **"*ne exeat*"** order; there was no legal restriction on her travel or otherwise. (Exhibit A, Maryland Custody Order dated October 7, 2019 giving residential, physical and joint legal custody to Lee.)

(2) Lee did not take or entice her children from anyone; they were already with her and had been with her, legally and properly, since they had been born; The suggestion that the

children were legally with Rex is factually incorrect. Rex had never had residential or physical custody. He had moved away from Maryland and lived in Florida since 2014 while Lee's children remained in her legal, residential and physical custody; when Lee left Pennsylvania in 2020, Rex was not legally entitled to physical or residential custody until (arguably) some prospective date thereafter when and if he chose to leave Florida, travel to Pennsylvania and take the children from Lee. Even then, he could not have obtained physical and residential custody unless and until he had registered his purported order in Pennsylvania pursuant to the UCCJEA and could get Pennsylvania to enforce it, but Lee would have to have been given notice of that registration and would have 20 days to challenge its validity. So the Charges under 18 Pa.C.S.§2904 relied on possible/presumed future events that never occurred.

(3) On March 17, 2020 the Washington County, Maryland Circuit Court granted a motion made that same day, ex parte, without giving Lee notice or opportunity to be heard. (EXHIBIT B, March 17, 2020 Ex Parte Order {the "2020 EPO"}). That Order did not comply with the jurisdictional provisions of MD FL§9.5-101 et seq. (the UCCJEA), Pennsylvania Title 23, Chapter 54 (UCCJEA) or 42 USC 1738A (the PKPA), meaning said order was not a "valid enforceable order from a court of competent jurisdiction." Furthermore, that order deprived Lee of her Constitutional right to notice and opportunity to be heard. It was therefore ***void ab initio***. The order is invalid on its face. And Pennsylvania law specifically excludes it from being enforced in Pennsylvania, under 23 Pa.C.S.§5425(b).

### 3. Third good cause – The interest of justice:

If this Motion is not heard and Lee must stand trial, that very fact will work an undeserved hardship on her. Lee works full time at a very demanding and responsible job; she has an adult son from a prior relationship who is on the Autism Spectrum and requires more care than most adults; she has spent a small fortune on attorneys who did not serve her interests well; she did not commit the crime charged but will be put to the task of essentially proving her innocence while the Commonwealth cannot possibly prove her guilt because the elements of the crime are not present. All this would be at the expense of Pennsylvania taxpayers, which is not in the interests of either justice or judicial economy. In short, enforcing the technical deadline imposed by Rule 579 would result in a severe miscarriage of justice and a denial of due process.

### 4. Fourth good cause – No prejudice to the Commonwealth:

Trial has not been scheduled yet. On September 3, 2026, the DA said he would require two days for trial; Defendant will probably require three more. The fact that Mr. Jones and Mr. Walker both ignored the evidence (since both attorneys were focused keenly on coercing a plea deal) contributed to the long delay in bringing this case to the present point in time. So hearing this motion will not disturb any trial calendar. In fact, if the motion is not heard and a trial must take place, the legal issues that can be disposed of on this motion will come to bear upon the trial itself as a sort of "trial within a trial," since the two listed affirmative defenses to §2904 are: (a) Defendant's belief that she was protecting her children from harm (a rational and credible belief the DA cannot prove she did not hold); and (b) that Lee violated an or-

der from a court of competent jurisdiction (the very issue to be decided by this Court on this Motion; and clearly an issue to better be decided by a judge than a jury). So hearing this motion will, at best, dispose of the need to have an expensive trial or, at worst, settle pertinent legal issues before that trial takes place. Also, the Commonwealth cannot prove that on March 17, 2020, Lee was a "person without the privilege" of taking her children. Even the 2020 EPO names her as the children's joint legal custodial parent. As their parent she had a right to be with them and had the privilege as well since the order says on its face that she retained legal joint custody, as well as physical custody until some unspecified later date. Only then would physical custody change and even then, joint legal custody would remain in place until or unless a court of competent jurisdiction modified it. Indeed, had Lee somehow magically become a person without maternal, custodial or legal rights or "privileges" instantly upon entry of the 2020 EPO, who would stand in a position to care for and supervise those two children? No state agency was given care, custody and control of them that day; no person or organization was empowered to take over care of them. What if Rex never showed up in Pennsylvania to assume his newly granted responsibilities? The signature and entry of the 2020 EPO did not and could not transform Lee from a parent/guardian to a "person without the privilege" on that day.

## 5. Fifth good cause – Lack of Awareness:

Prior to September, 2026, Lee, a layperson who had never before been involved with the criminal justice system, had no awareness of the possibility of filing such a thing as a pretrial motion to dismiss. None of her lawyers had mentioned it and she had relied on them totally and not tried to do her own research until she found herself

unrepresented. If she were to go to trial, however, the prosecutor still could not prove the elements of the crime charged. So enforcing the 30-day deadline would result in a severe miscarriage of justice or a denial of due process – actually both. It would be a denial of due process to enforce against Lee an order that was entered without due process in another state. And it would be a severe miscarriage of justice as well because the trial would be a sham: the statute provides the specific affirmative defense of defendant's belief that she was protecting the children from danger, the prosecutor would have to prove she did not actually have that belief, wnicn Lee can easily prove she had: evidence from Mr. Quan Williams, the Florida CPS investigator and Ms. Amanda Bishop (Child Advocacy Center Director and Trauma Therapist in Maryland), and even Dr. L. Alexandra Mirabelli in Maryland (who, in the Mirabelli Report, admits that Lee was concerned for her children's safety and welfare if they were alone with Rex.)[1] And for that affirmative defense to be successful, a defendant need not prove that her belief was "objectively reasonable" (although Lee can actually prove that too); it's a subjective belief. Defendant only must show that she held that belief. *Commonwealth v. H.D.*, 255 A.3d 1241 (Pa. 2021). In that case, a parent was ruled not criminally responsible for violating the law if she believed (by a subjective standard) that she was doing so to protect her children from danger to their welfare.

[1]There is even a question of whether the DA should have been required to turn over more evidence to the PD in 2023 as Exculpatory Evidence, but it is not clear what took place between those offices or between the DA and Lee's subsequent counsel. The original prosecutor has left the DA and is now employed in a private firm, and Walker never turned over the DA's evidentiary file to Lee although she has demanded it.

## II. The Motion Should Be Heard in the Interests of Justice

Defendant's search for an attorney willing and able to defend her in the above-captioned case is ongoing but Defendant files this motion pro se before retaining counsel in order to avoid delay, to place the pertinent information before the Court expeditiously and to serve the interests of judicial economy and justice. Since the Commonwealth cannot prove Lee was a "person without the privilege" of taking her children out of Pennsylvania on March 17, 2020 and cannot disprove the affirmative defense of "protection of the children from danger," hearing this Motion will allow the Court to inject some legal orderliness into what has so far been a runaway prosecution unwarranted by the fact situation. For this reason: the only thing that purported to identify Lee as a criminal was the 2020 EPO, which did not change her status from joint custodian to "person without the privilege"; it merely changed her designation, and that merely on paper. Whereas she was called "exercising custody" one minute, the 2020 EPO would have her regarded as "interfering with custody" the next, by fiat. No form of justice can countenance that kind of abandonment of any person's fundamental rights.

The 2020 EPO was not entitled to recognition and enforcement in Pennsylvania because it did not comply with the jurisdictional requirements of the PKPA or the UCCJEA in either Maryland or Pennsylvania; it had not been registered in Pennsylvania under the legal requirements for enforcement there and it was therefore not an order from a court of competent jurisdiction. Even if, ***arguendo***, the 2020 EPO were considered enforceable in Pennsylvania under the PKPA and the UCCJEA, it was rendered ***void ab initio*** by the fact

that it was made without notice or opportunity to be heard, violating both Maryland and Pennsylvania law and the superseding federal and Constitutional law. Pennsylvania Law Title 23, Chapter 54, §5425(b) explicitly states:

> **Lack of Notice or Opportunity to be Heard: This Chapter does not govern the enforceability of a child custody determination made without notice or any opportunity to be heard.**

So the Commonwealth cannot prove any elements of the crime charged against Defendant Lashada Lee, and is specifically precluded by statute from enforcing the 2020 EPO against her, and this Motion should be granted on the merits in the interests of justice.

## Conclusion

The DA should not have brought these charges against this Defendant; but had the DA erroneously brought these charges against her, the PD should have filed this Motion within 30 days of the arraignment; had the PD not filed this motion timely, one of Lee's subsequent private attorneys surely should have done so; and failing that, the Defendant believes that this Motion should be heard and granted in the interests of justice because the facts show that she is innocent and the DA cannot possibly prove their case.

WHEREFORE, in view of the foregoing and the exhibits and declarations attached hereto and made a part hereof, as well as the memorandum of law attached hereto and filed herewith, your petitioner respectfully asks the Honorable Court to hear and decide this motion

on its merits and in accordance with the laws of the Commonwealth, dismiss the information and declare the charges against Defendant to be vacated.

Respectfully submitted this ____ day of October, 2026
Lashada Lee
pro se

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Lashada Lee, Defendant pro se
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**IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA**
**CRIMINAL DIVISION**

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| COMMONWEALTH OF PENNSYLVANIA ,<br>*Plaintiff,*<br>v.<br>LASHADA LEE,<br>*Defendant.* | **No.: CP-28-CR-594-2023**<br><br>**Declaration of Lashada Lee pursuant to Pa.C.S.§6206 in Support of Pro Se Omnibus Motion** |

I, Lashada Lee, an adult citizen of Maryland, hereby state as follows under the penalties of perjury, in support of this Motion:

1. I am the defendant in the above-captioned action.

2. In 2019 I sued in the State of Maryland for divorce from my ex-husband, John Rex. I was awarded custody of my two children, Hannah Lee and Skye Rex, on October 7, 2019. (EXHIBIT A, Custody Order (the "Initial Custody Order," or "2019 ICO")).

3. The State of Maryland was enabled by law to exercise continuing jurisdiction to change or modify the 2019 ICO until some date thereafter so long as the children or one of the contestants "continue[d] to reside in Maryland." (See MD FL §9.5-202)

4. By March 17, 2020, none of the parties continued to reside in Maryland: Rex had moved to Florida in 2014, the children and I moved to Pennsylvania in July, 2019.

5. Yet Maryland entered an ex parte order (EXHIBIT B, 2020 EPO) on that day and then the Maryland Court actually overreached by entering yet another order three days later that purported to give

"law enforcement" the right to enforce the 2020 EP, without following any of the procedures set forth in Maryland, Pennsylvania or federal law providing for registration and enforcement of lawful custody orders from sister states. (EXHIBIT C, March 20, 2020 Enforcement Order, or "2020 EnfOR"). The 2020 EnfOR allowed for the use of force by law enforcement officers against me and my family.

6. The DA then began a prosecution against me without the appropriate legal foundation, charging me with two violations of 18 Pa.C.S. §2904 although the fact situation did not provide any of the elements of a felony charge for interference with custody.

7. I did not realize this because I was not given notice, I am not a lawyer, had never been involved in any illegal activity or exposed to criminal procedure in any state, and trusted that any criminal defense lawyer licensed in Pennsylvania would zealously defend me so I did not try to second guess my court-appointed public defender. I knew that I had no criminal intent at any time and that I was only and always acting as any proper parent should, but I did not know the legalities involved or how to discover them.

8. I have tried to make this a cogent and comprehensible motion, and I will file it at the earliest possible moment I can prepare it carefully and properly. I believe Mr. Jones was ineffective because he surely should have known a Motion to Dismiss the indictment would have been in order to defend me; he should have filed this Motion immediately after the arraignment, but there is little that can be done about that now. I don't know why neither of my two subsequent attorneys tried to do this either. Finding a new attor-

ney now has been all the more difficult because I have spent so much money on the attorneys who failed to take this important step, but I continue my search to retain a competent attorney while filing pro se. (And I believe I will be able to retain counsel before October 29.)

9. In 2023, I met Dr. Amy Neustein, Ph.D., author of the landmark book, Neustein, A. and Lesher, M., *From Madness to Mutiny: Why Mothers Are Running from the Family Courts and What Can Be Done About It*, Oxford University Press, 2025, that described a situation that has apparently become fairly prevalent: A child discloses sexual abuse to her mother (most likely scenario) who believes her; the mother then turns to the public agency for child protection services ("CPS") and to the family court for help, but a scary situation develops. Fathers accused of abuse can hire lawyers who believe the best defense is a good offense, so they aim a full-blown attack on the mother, calling her a liar, a hysteric, mentally unstable, vindictive, etc., and presenting the fathers as innocent parents being unfairly and maliciously "alienated" from their children. Then proceedings can take place blaming the mother for any fear, anger or shyness the children demonstrate towards the father, which can cause all sorts of psychological stressors to complicate the family problems. Any adverse reaction the children display can then be blamed on the mother and the more she tries to defend, the more defensive and unreasonable she appears and the more her words and acts are misconstrued and criticized. Now the family is raggedly "dysfunctional" and any circumstances can be misinterpreted (deliberately and/or inadvertently) so that ultimately, the mother is often seen as unruly and recalcitrant. Such a mother is usually then stripped of custody and even visitation be-

cause she is considered unfit and untrustworthy. When she tries to resist and continue to protect her children, she can be jailed. I saw that I was in a terrible position, likely to not only lose my children but also my freedom.

10. Hearing and reading about this terrified me because it was exactly what was happening to me. Dr. Neustein referred me to another author/activist, Ms. Michelle Etlin, who had written the first book on this subject back in 1995, Rosen, L. and Etlin, M., *The Hostage Child: Sex Abuse Allegations in Custody Disputes*, Indiana University Press, Bloomington, IN, 1995. Etlin suggested I attend the Battered Mothers Custody Conference in Albany, NY (the "BMCC") and there I learned that this problem is prevalent in the family courts of all 50 states and DC. Mothers were going into hiding to protect children from abuse in numbers large enough to cause documentary films ("Children of the Underground" about mothers hiding their children!) and university studies on the phenomenon including studies at Georgetown University (where Professor Joan Meier, Ph.D. teaches and publishes). Organizations were set up to "raise awareness" but there were no organizations providing pro bono counsel to these women in either civil or criminal courts. A few pro bono counsel over the six decades that this was happening took appeals to various appellate jurisdictions but most appellate courts simply said they would not disturb "trial court discretion" so there was very little legal precedent set about the issue. That remains true to this day, apparently.

11. The Legislature of Pennsylvania obviously became aware of this phenomenon at some point and, admirably, tried to deal with it legislatively, because the statute that punishes custodial inter-

ference, 18 Pa.C.S.§2904, actually recognizes the problem and provides for the affirmative defense of "protection from danger of harm" in subsection §2904(b)(1). So the Legislature put in place the very defense that I will use if this Motion is not granted and I am forced to defend myself at trial. In order to show this Court the merit of my case, however, I state as follows:

(a) I married John Rex ("Rex") in 2003 but we lived together only briefly because he was aggressive, violent and abusive towards me. Two children (Hannah Lee and Skye Rex) were born during the marriage. I did not divorce Rex earlier because my religion discourages divorce. But we lived together only briefly and sporadically and he did not often visit the children.

(b) Rex moved to Florida in 2014. In or about July, 2017, I brought the children with me to Florida and we visited with Rex, but before I returned to Maryland, my older daughter Hannah disclosed to me that Rex had molested her at a time when I was not present. I did not directly confront Rex because I was still afraid of him. But I took Hannah to the local CPS Agency in Florida for help and guidance.

(c) A social worker/abuse investigator, Mr. Quan Williams, interviewed Hanna there and believed her disclosure was credible; he opined that Hannah had indeed been molested. So I naturally also believed it; he was an authority in these matters. The agency did not open a case, however, because my children and I were not Florida residents, so they advised me to return to Maryland, not to let Hannah be alone with Rex, and to obtain trauma therapy in Maryland for Hannah. They gave me paperwork to that effect but in the many moves we have had to make

from then until now, I lost the paperwork. Copies should be available in Washington County Child Advocacy Center, however, and if I go to trial I will have to subpoena them as well as the Florida CPS file).

(d) I followed the CPS Agency's instructions. Ms. Amanda Bishop, the Director of the Washington County, MD Child Advocacy Center, provided trauma therapy for Hannah for a year in Maryland. Since I was not charged for this therapy I assume it was paid for by the State of Maryland. Ms. Bishop also held several sessions with me to educate me in the ways to deal with Hannah's progress in healing; we both understood our place in Hannah's recovery. I was made aware of how these experiences can negatively affect a child's growth and welfare, even damaging their lives as adult women. Foremost in my mind at all times was my responsibilities as a mother. Whatever I had to do to help Hannah recover from this event, I would do my utmost to comply.

(e) First and foremost, in order to support a child's recovery from child sexual abuse, one must believe the child, let them know you are sorry it happened but it is not their fault, and you must let them express their own feelings. If you blame them or try to tell them to stop or deny their own feelings about it, that makes it worse. So I would never let Hannah think I wanted to deny her feelings or that I wanted her to "clam up" about the abuse, or tell her to pretend it hadn't happened or anything like that. She knows what happened and she knows I believe her and always did and always will.

(f) The course of our court proceedings developed as ominously

and as counterintuitively as the many cases I heard about at the BMCC. The MD Court appointed a "best interests attorney" (the Maryland term for a guardian ad litem), Ms. Erika Barrett Johnson (the "BIA"). I perceived that she was hostile to me from the beginning. She terminated Hannah's trauma therapy and substituted "reunification therapy" for Hannah because she did not want either Hannah or me to continue believing that there had been a trauma. Ms. Bishop, of course, did believe it. The reunification therapist concluded, finally, that Hannah could not be successfully reunified with her father. So the BIA appointed psychologist Ms. L. Alexandra Mirabelli, Ph.D. ("Mirabelli"), to evaluate me and Rex as parents and perhaps also to opine on the veracity of the sex abuse allegations. Both Hannah and I, however, continued to believe what we knew had happened. I believe it to this day without any doubt.

(g) Also predictably (according to the research on these cases), the BIA and Mirabelli worked together to rehabilitate the relationship between Rex and the children, even taking them together with Rex to nice events and outings, perhaps at State expense. I began to see that they were promoting the rumor that I was mentally unbalanced because I believed the disclosures Hannah had made to me and tried to protect her.

(h) In July, 2020 I moved away from Maryland and to Franklin County, Pennsylvania. This was not a clandestine move. I registered Hannah in public school and she started school in September, 2019. By the beginning of February, 2020, my children and I had lived in Pennsylvania for more than six months and Pennsylvania was the home state of my children under both Maryland and Pennsylvania law. At this time, Hannah

was being exposed to visitation with Rex without me present to protect her, and she was suffering from anxiety and stomach aches and nervous illnesses that caused her to miss school frequently and disturbed her sleep and her attention, but her therapy had been terminated and there was little I could do to prevent or ameliorate these problems.

(i) On March 17, 2020, the BIA made a motion to abruptly change physical and residential custody from me to Rex, with whom the children had never lived. The BIA attached Mirabelli's report, which called me "unstable" and said I made "false allegations" of sexual abuse. I had no opportunity to object to anything in the report, to adduce any evidence in my own defense or to subject Mirabelli to cross examination. Rex was given the right to come to Pennsylvania and take the children to Florida with him at some undisclosed time after the order was entered. (EXHIBIT D, March 17, 2020 BIA's "Emergency" Motion to immediately deprive me of physical custody.)[1] She styled it an "emergency motion" and asked it to be done "immediately" but did not recite any statutory emergency recognized by Maryland or Pennsylvania law. (Under the terms of the UCCJEA, a state can make an emergency motion but only if the child is present in that state and upon certain specific conditions; Hannah was not in Maryland on March 17, 2020.) That motion asked for the order to be granted without even an ex parte hearing in Chambers or on Zoom. I had absolutely no opportunity to be heard.

[1]The BIA knew I had moved away from the Maryland address she listed on the Motion but perhaps she resurrected the old address to give the impression that I was still in that state; I cannot accuse her of anything I cannot prove. But she called the Pennsylvania school Hannah attended for information; she arranged for law enforcement in Pennsylania to prosecute me; she undoubtedly knew that we no longer resided in Maryland when all this took place without notice to me.

(j) The motion was nevertheless granted totally and without exception that very morning at 11:07 a.m., less than four hours after it was filed. [Please see EXHIBIT B, the 2020 EPO; EXHIBIT D, the BIA's Motion; and EXHIBIT E, the Docket Sheet of Case C-21-FM-18-000163 in Maryland,]

(k) While the divorce/custody case in Maryland was taking place, I was working, taking care of my mother as she was dying from cancer, and raising my children. I am a good mother. No child abuse or neglect allegations have ever been brought against me in any jurisdiction. But I did not try to study the law, and tended to believe whatever my attorneys told me (after all, that is why we hire attorneys). So I did knew nothing about jurisdiction, the PKPA, the UCCJEA, or the rules of civil or criminal litigation. I only knew that my daughters were in danger and it was my sacred duty as their mother to do my best to protect them.

(l) In 2023, I was living in hiding and home-schooling my daughters. They were doing well. During the time we were away, my daughters did not feel pressured or scared, and Hannah revealed more to me about the abuse she had suffered. I tried to help her with prayer and comfort but I could not risk trying to place her in therapy again. She did have much less anxiety and hardly ever was ill, as she had been during the time we were in Pennsylvania while the custody battle was ongoing and making her feel unsafe. But eventually I ran out of savings to support myself and my children, so I resigned myself to returning to Pennsylvania and turning myself in because the criminal charges had already been drawn against me.

(m) I returned to Franklin County on or about May 10, 2023. The Police interviewed me; The Franklin County CPS agency took my children and I was jailed. The arraignment took place and I was appointed counsel from the PD's office. This case was underway.

(n) My appointed lawyer, Mr. Enoch Jones told me that I could get 14 years in prison if I went to trial, and he tried to convince me that I could not win; he said there were only two alternatives: risk trial in a county where he thought I would surely lose, or plead guilty and accept a plea bargain offered by the DA. He did not even explain the specific statutory affirmative defenses to me. The offer was unacceptable and I refused to plead. He apparently didn't try to make any counter-offer to the DA.

(o) I replaced the PD with a private attorney, Ms. Sherry Cooper, who did not tell me anything about the possibility of a pre-trial motion to dismiss charges, but who did tell me about the affirmative defense of "protection from danger of harm to the children's welfare" and who said I had a strong case and she expected me to win. When she told me, however, that she was not going to personally represent me at trial but was assigning that to a young inexperienced associate, I became frightened and replaced her with attorney Michael Walker, Esq.

(p) Mr. Walker did nothing to prepare for trial or to investigate the charges against me, which I now believe were essentially bogus. Instead, he tried to coerce me into pleading guilty in return for a lengthy period of probation, the terms of which would be absolutely no contact with my daughters for many years. This smacks of a custody decision rather than a criminal sentence.

After all, a criminal sentence occurs after a pre-sentence investigation, and even incarcerated parents get visitation with their children. It did not make sense and it was much worse than what the PD had previously offered as a plea deal. Mr. Walker acted like he had no power to negotiate a better outcome and he flatly told me I could not win.

(q) A combination of factors made me very suspicious of what was going on in my case by this point in time. And then Ms. Etlin told me she had spoken to several attorneys with general questions about remedies. She said words to the effect of: "A New York attorney I trust asked why on earth you haven't filed a motion to dismiss the Indictment?" But she didn't know any criminal defense attorneys who practice in Pennsylvania. So I began to research the possibility, using the key words "motion to dismiss indictment criminal law Pennsylvania."

(r) Before that, I was unaware something like that could be done. We don't see these procedural actions on TV or in the movies and we don't see them in news reports on crime. We see dramatic courtroom scenes in front of juries; we see verdicts; we don't see motions and affidavits. Ms. Etlin encouraged me to do my own research and I have been diligent in doing so.

12. What I have learned convinces me that this Motion is appropriate and meritorious. I have done my best to put it together in a comprehensible way and when I discovered (in mid-September) the time limitation imposed by Rule 579, I did more research to learn how to excuse my tardiness in filing and to make it worthy of this Court's consideration. Therefore I pray Your Honor extends the time for filing it and hears this motion on its merits.

**Verification — Unsworn Declaration**
Statement Pursuant to the Pennsylvania
Uniform Unsworn Declarations Act (42 Pa.C.S. § 6206):

I, Lashada Lee, do hereby declare under penalty of perjury under the law of the Commonwealth of Pennsylvania that the foregoing statement is true and correct.

Signed on the _____ day of October, 2026, at _____, Maryland

_____

Signature

**IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA**
**CRIMINAL DIVISION**

| | |
|---|---|
| COMMONWEALTH OF PENNSYLVANIA ,<br>*Plaintiff,*<br>v.<br>LASHADA LEE,<br>*Defendant.* | **No.: CP-28-CR-594-2023**<br><br>**Declaration of Michelle Etlin in Support of Defendant Lee's Pro Se Omnibus Motion** |

Declaration of Michelle Etlin pursuant to 42 Pa.C.S. §6206 in Support of Pro Se Omnibus Motion of Lashada Lee

I, Michelle Etlin, an adult citizen of Maryland, hereby state as follows under the penalties of perjury, in support of the pro se Motion filed by Defendant Lashada Lee asking this Honorable Court to dismiss the criminal information against Lee, and in support thereof I hereby state:

1. I am not a lawyer and have never been one. Although I am now retired and disabled, I worked for 55 years as a child care worker, legal secretary and medical secretary. I hold no degrees or professional credentials. I have made all this clear to Movant/Defendant Lashada Lee ("Lashada").

2. Since 1980 I have engaged in volunteer activism and advocacy for mothers facing family court problems, and co-authored a book on the subject in 1995, namely: Rosen, N. Etlin, M. *The Hostage Child: Sex Abuse Allegations in Custody Disputes*, Indiana University Press, Bloomington, IN, 1995.

3. I met Lashada in 2023 when my friend Amy Neustein, Ph.D. told me about her case and asked if I could help her in any way. I interviewed her at that time and told her that I would like to help her but I could not do much to assist, inasmuch as I was both disabled and blind at that time and most of the attorneys I knew who might help had either retired, passed away, or were not barred in Pennsylvania. Knowing that, Lashada still wanted to keep in touch with me as her case progressed and so we have been in touch since then. I accompanied her to Court on September 3, 2026.

4. When Lashada was being represented by Mr. Enoch Jones of the Public Defender's Office ("Jones"), Lashada told me he would not let anybody, even her own sister, sit in on meetings with him and this troubled her because she wanted help understanding her options. I told her I had been with mothers in conferences with their attorneys literally scores of times and I would try to help. I phoned Jones repeatedly but never got a call back. Eventually Lashada told me he refused to allow any contact. He also told her several other discouraging things. He wanted her to plead guilty in exchange for years of probation, the terms of which were that she would have absolutely no contact with her daughters. This just didn't sound right. It was more like a punitive custody order than like a criminal plea bargain or a criminal sentence. Lashada was sure this was not in her children's best interests.

5. This made me believe that there was something fundamentally wrong with Jones's representation of Lashada; that outcome didn't sound to me like an appropriate condition of probation. How would her Probation Officer know what was in her children's best inter-

ests, with them living in Florida and out of touch? Why would probation require that kind of Draconian restriction from someone who never had abused her children or anyone else?

6. In early 2024 I urged Lashada to attend the 16th Annual Battered Mothers Custody Conference held in April, 2024 in Albany, New York. She registered and attended.[1] She was able to get information about current problems facing mothers in family court proceedings and to meet other mothers, many legal and other professionals, and to gain an understanding of the issues and challenges involved in these cases. Also, apparently, several journalists covered the proceedings there and one investigative journalist in particular began to follow Lashada's case.

7. When Jones left the Public Defenders Office and joined the prosecutor's office, Lashada hired private counsel, Sherry Cooper, Esq. ("Cooper") who, unlike Jones, allowed the client to confer with her with friends and advocates there for support. During a conversation with Cooper, I was encouraged to learn that she was planning to put forward the affirmative defense provided by §2904: protection of the children from danger of harm to their welfare. But Cooper had not mentioned anything about the second affirmative defense available: there being no custody order from a court of competent jurisdiction. I didn't know about that second affirmative defense at the time either; because of my medical condition at the time I had not carefully read the statute or any analysis of it. Ms. Cooper sounded competent to me so I didn't try to find out more than she told us.

[1] Please see www.BatteredMothersCustodyConference.org.

8. When Lashada changed lawyers again, I asked if she wanted me to confer with Mr. Walker but she said it was basically too expensive. So I was alarmed when, in August of this year, she called me and told me that he had done nothing to prepare for the pretrial hearing and that he was advising her to just plead guilty because she "could not win." Ms. Cooper thought she could win. What had changed?

9. I had recovered my eyesight (although it is still poor) by extensive surgery by this time and I began to read as much as I could about her case and the Pennsylvania law under which she was charged. I called many doctors and lawyers I knew and for whom I had worked over my 55-year secretarial career. The more I told Lashada's story, the more I gathered opinions that she had been legally and otherwise disadvantaged in the worst way. I think the quote I heard that most concerned me was a New York attorney for whom I had worked for years, who asked: "Why on earth hasn't anyone made a motion to dismiss the indictment based on that lame excuse for a court order?"

10. I promptly told Lashada what this lawyer said and gave her a little guidance in how to research the matter. She took off like lightening and we spoke repeatedly about what she was discovering. I couldn't accompany her in much of the research because of my health but she persevered. I spoke a few times to my colleagues and especially to Dr. Neustein, who was impressed with Lashada's progress and industriousness. When Lashada asked me to write a declaration supporting her motion, I was honored and immediately did my best to comply. All the attorneys and colleagues to whom I have showed Lashada's work have been very encouraging

and supportive, and some of them have given helpful notes on the issues involved.

11. Meanwhile, we all have been pounding the proverbial pavement and beating the proverbial bushes to find Pennsylvania counsel for Lashada. The search has been complicated by financial considerations and timing. Finally, however, I believe Lashada has a viable possibility to retain Ms. Renee Mazer of Pennsylvania but I don't know whether Lashada will be able to retain her soon enough for Ms. Mazer to make it to court in Franklin County by October 29; that seems like short time, but I hope this works out. Meanwhile I am feeling very relieved that Lashada is planning to perfect and file the Motion.

12. I can verify the fact that there was really no way for Lashada to know that there was this type of motion available in a criminal case before this time. I had seen no fewer than 261 mothers' custody battles in all 50 states and DC (and Israel, Canada, New Zealand, the Netherlands and the Dominican Republic) before I met Lashada and had never actually seen a criminal case like this one before. In the 40 years that I voluntarily went to court with other mothers, I never was in criminal court before.

13. As soon as Lashada heard about the remedy of a Motion to Dismiss, she set about preparing this Motion and I'm sure it is as good as she can possibly make it, and I sincerely pray the Court will consider it on the merits.

14. I have tried to help Lashada gather the exculpatory evidence that her various attorneys have never obtained, but these efforts have been fruitless.

(a) We wrote to the Florida CPS Agency but got no response whatsoever; I called them and asked for guidance and followed all their instructions to no avail; one clerk told me the mother would need to hire Florida counsel to get the information.

(b) At one time I managed to get the Maryland Court file sent to an organization that has done good pro bono work helping mothers in child abuse/custody cases (Child Justice, Inc. in Maryland) but they said it was now a Pennsylvania case so they could not help.

(c) Many other efforts to get help for this beleaguered protective mother have netted no additional help. It is said that God helps those who help themselves, so I say, may God help the mother who is now helping herself with this Motion.

15. I am willing to be placed under oath and questioned about anything I have written in this declaration, or anything else germane to this case that is within my knowledge.

**Verification — Unsworn Declaration**
Statement Pursuant to the Pennsylvania
Uniform Unsworn Declarations Act (42 Pa.C.S. § 6206):

I, Michelle Etlin, do hereby declare under penalty of perjury under the law of the Commonwealth of Pennsylvania that the foregoing statement is true and correct.

Signed on the _____ day of October, 2026, at Pikesville, Maryland

_____

Signature

**IN THE COURT OF COMMON PLEAS OF FRANKLIN COUNTY, PENNSYLVANIA**
**CRIMINAL DIVISION**

| | |
|---|---|
| COMMONWEALTH OF PENNSYLVANIA ,<br>*Plaintiff,*<br>v.<br>LASHADA LEE,<br>*Defendant.* | **No.: CP-28-CR-594-2023**<br><br>**Memorandum of Law in support of Defendant's Pro Se Pretrial Omnibus Motion for Relief** |

**Memorandum of Law in Support of Pro Se Omnibus Motion**

Comes now your Defendant Lashada Lee and submits this Memorandum of Law in support of her Pro Se Motion to Dismiss Criminal Information and Habeas Corpus Nunc Pro Tunc.

**STATEMENT OF FACTS:**

1. Defendant Lashada Lee ("Lee") was joint legal custodial parent to her two daughters since their birth when, on March 17, 2020, the Circuit Court for Washington Co., Maryland (the "MDCC") entered an order (the "2020 EPO"), of which she had no notice or opportunity to be heard, suddenly naming her ex-husband John Rex ("Rex") physical and residential custodian.

2. The 2020 EPO ordered that Lee's children be removed from Pennsylvania (where they lived) and taken to some undisclosed address in Florida, where Rex was ordered to register the older child in the local public school (also undisclosed).

3. Lee stands accused of two felony charges (carrying the possible sentence of 14 years in prison) for not having facilitated this order

in Pennsylvania on or after that date. Instead, she left Pennsylvania that day with her children and continued to care for them as a good parent, without abusing or neglecting them, or endangering them, as she always had done.

4. At the time Lee was arrested, she was without funds and was assigned counsel, Mr. Enoch Jones ("Jones") of the Franklin County Public Defender's Office. Jones did not inform Lee that any pretrial motions could be filed in her behalf and he did not file any. Lee only learned about this remedy in mid-September of this year when she had to resort to doing her own research because she was unrepresented and the pretrial hearing loomed. Jones apparently ignored Lee's right to challenge the validity of the 2020 EPO and instead attempted to coerce a plea that the Prosecutor was offering.

5. Shortly after his representation of Lee, Jones left the PD and joined the DA's office. Lee's two subsequent attorneys also failed to file any dispositive pretrial motions although they would have been in order.

6. The PD's file in this matter has never been turned over to Lee; it is possible that it was not turned over to her subsequent private attorneys either; so Lee is unaware of its contents.

## I. The Law Supports Allowing an Exception to Rule 579

Under Pa..Crim.P. 579(A), pretrial motions should be filed within 30 days of arraignment unless the opportunity to do so did not then exist, the defendant was unaware of the grounds, or the court extends the time for "good cause shown." There is not much appellate caselaw

available providing guidance as to whether or not, and under what circumstances a Judge should allow a late filing because it is, reasonably and rationally, a matter of trial court discretion. In this case, a valid excuse exists for allowing the instant pro se motion to be heard and Lee respectfully asserts that allowing it will not only not waste the Court's time, but will probably save judicial time and relieve the Commonwealth of expense and administrative burden (either of trial and/or of response to complex and lengthy appellate proceedings).

Pennsylvania courts explicitly recognize that an exception to the 30-day rule is required when strict enforcement would result in a severe miscarriage of justice, particularly when caused by structural failures or ineffective assistance of prior counsel. See *Commonwealth v. Holmes*, 79 A.3d 562 (Pa. 2013) (holding that trial courts retain the inherent discretion to entertain claims of counsel's deficient performance at the pretrial stage in extraordinary circumstances where the claim is apparent from the record and the interests of justice require immediate consideration). Furthermore, when a pretrial motion is submitted late but *prior* to the scheduling of a definitive trial date, the prosecution suffers no structural impairment. See *Commonwealth v. Long*, 753 A.2d 1244 (Pa. Super. 2000) (finding no prejudice to the Commonwealth where an untimely motion is raised before the trial schedule is disrupted).

Lee is now proceeding pro se while on the verge of hiring yet another attorney to represent her should this motion fail. She raised this critical challenge immediately upon discovering prior counsel's deficiencies. Under *Commonwealth v. Cooke*, 492 A.2d 63 (Pa. Super. 1985), a defendant should be granted an extension to file an omnibus motion where they act promptly to raise meritorious claims following a change of counsel. Not only does the posture of this case

at this time show that this Motion is worthy of consideration, but at the September 3, 2026 hearing the DA said he would need two days for the prosecution; Defendant will require at least two more days to present her evidence of "belief that [she] acted to protect [her] children from danger of harm to their welfare" (first affirmative defense listed in the statute) and possibly another half day to present at least one expert witness as well (to let a jury understand the complexities of this case). So approximately a full week of trial must be expected, at great expense to both the Commonwealth and the defendant. Because no trial date has yet been set, however, and a pretrial hearing is scheduled for October 29, 2026, the Commonwealth faces zero prejudice, no witness disruptions, and no calendar delays. Forcing a facially unconstitutional and legally questionable indictment to go to trial would constitute a serious waste of judicial resources and would be unjust.

**II. The Law Supports Granting the Motion on its Merits.**

Pennsylvania courts have inherent discretion to hear untimely motions to preserve constitutional protections and prevent systemic waste. Both constitutional protection (being tried for a crime of disobedience to a foreign court order that denied due process and was ***void ab initio***) and systemic waste (holding a trial in which the prosecutor cannot prove his case because at least one, and possibly both of the affirmative defenses set forth in the statute are present and one, §2904(b)(1), is incontrovertible) support this pro se motion. If the prosecutor managed to get a conviction in spite of all this, it would be subject to being overturned on appeal after much expense and trauma. *Commonwealth v. H.D.*, 248 A.3d 1243 (Pa. 2021). See also *Commonwealth v. Harlan* (208 A.3d 497). In *Harlan*, the trial court found a valid excuse for the severe delay based on the procedural chaos surrounding the defendant's representation. *Commonwealth v.*

*Harlan*, 208 A.3d 497, 499 (Pa. Super. 2019). Among "good causes" listed in the case law, a prior attorney's failure to investigate (Per Se Ineffectiveness) is all too common. In this case, Jones, the PD, failed to file the necessary motion to dismiss the indictment, although it was transparently, indeed glaringly obvious that the indictment was structurally defective at its core. The law also recognizes, as a practical matter, that there is such a thing as an attorney withholding the filing of a dispositive pretrial motion in order to coerce a plea bargain. Because Lee has no actual evidence of specific communications between and/or among defense and prosecution personnel, however, she makes no allegations about that suggestion at this time. Lee simply wants to point out that when counsel (or a series of counsel) abandons a critical constitutional claim, forcing the defendant to act pro se out of self-preservation, the Court may consider the merits of a pro se motion filed outside the deadline, in the interests of justice. Pennsylvania appellate courts have repeatedly held that when a defendant's right to effective, conflict-free counsel collapses, the 30-day deadline should give way to prevent a serious miscarriage of justice.

## III. The Law shows that the MD Court was not "a court of competent jurisdiction"

Interstate custody disputes often involve jurisdictional struggles and criss-crossing litigations that present issues of subject matter jurisdiction. So over the last six decades, a federal law (42 USC §1738A, the "PKPA"), a Uniform Code (the "UCCJEA") and state laws such as MD FL §9.5-101 et seq. and Pa. Title 23, Chapter 54 have been passed to govern how state courts make and enforce valid child custody orders. For any state court (the "decree state") to enter a custody order that can be enforced by another state (the "forum state"), it must comply with its own applicable law and also comply with the superseding

federal law. Only then can the decree state be considered a "court of competent jurisdiction

The 2020 EPO was not an order entered by a court of competent jurisdiction on March 17, 2020. The Circuit Court of Washington County, MD (the "MDCC") had entered a valid custody order on October 7, 2019 giving Lee joint legal custody with primary residential and physical custody of her children. And the Maryland court did have continuing jurisdiction over custody after that, so long as the children or any contestant for custody "continue[d] to reside in [Maryland]" at the time it sought to exercise its continuing jurisdiction. On March 17, 2020, however, no child or contestant for custody of the Rex/Lee children did continue to reside in Maryland. Rex had left Maryland in 2014; Lee had left Maryland in July, 2019. Had the 2020 EPO been made properly, following the applicable law and the Constitution, notice would have been given to Lee and she would have had an opportunity to challenge the motion under MD FL 9.5-201. Then a court of competent jurisdiction could have taken over the custody case and ruled in compliance with the jurisdictional statutes. But there was no notice; the 2020 EPO was signed mere hours after the motion was filed, and the Order was remarkably thorough in depriving the mother of any possibility to respond. Had she been able to challenge the essential subject matter jurisdiction, it is likely that she could have also challenged the broad and unwarranted assumptions that underlay the merits but she was deprived of the opportunity to do any of that because the MDCC went from the filing of the motion to the entry of the order in a single morning.[1] The MDCC was no longer a court of compe-

[1]This leads a person to believe that there was some sort of inappropriate conduct connected with the making of this order. An "emergency motion" that is granted in toto without an evidentiary hearing of even one hour's duration smacks of impermissible ex parte communication, undue influence or other judicial and/or extrajudicial malfeasance.

tent jurisdiction to decide custody of the Rex/Lee children because, for seven or eight months by March 17, 2020, the necessary prerequisites for the exercise of such jurisdiction had lapsed: no child or contestant for custody continued to reside in Maryland. But no hearing was held on jurisdiction under the UCCJEA just as no hearing was held on the veracity of Mirabelli's Report or other conclusory allegations stuffed into the BIA's motion because the nicety of giving a mother an opportunity to defend her parental rights was disposed of. The MDCC was not a court of competent jurisdiction, if any jurisdiction at all, on that date.

## IV. The Law pertaining to an order that is *void ab initio*

One morning during the COVID lockdown, namely on March 17, 2020, a family court in the State of Maryland entered an order giving a Florida man physical custody of two children living in Pennsylvania whose mother had physical and residential custody of them by law and had been their residential and legal (and psychological) custodial parent continuously since their birth. That order, the 2020 EPO, was ***void ab initio***. That means it was a legal nullity. It cannot be enforced in any court, even the court that entered it. Such an order can be directly or collaterally challenged in any forum in which its enforcement is sought, regardless of the passage of time or the procedural issues pertaining. ***Jones v. Flowers***, 547 US 220 (2006). This Omnibus Motion is a collateral attack on the validity of the 2020 EPO, which the Commonwealth has been enforcing against Defendant since it was hastily and improperly entered more than six years ago. It is extremely important to prevent the Commonwealth from criminally prosecuting a person with the threat of 14 years in prison simply because she did not and could not respond to or comply with such an order; this Court should therefore carefully investigate the facts and arguments

presented and allow the Defendant to prove that the criminal information being used against her is without legal foundation or justification. In short, this prosecution is not permitted in Pennsylvania because it is based only on a ***void ab initio*** order from Maryland, and it is clear beyond cavil that Pennsylvania courts cannot enforce orders that are made without due process. *Glen-Gery Corp. v. Zoning Hearing Board of Dover Township*, 589 Pa. 135, 907 A.2d 1033 (Pa. 2006).

**V: The law showing Lee was not a person "without the privilege"**

Even if, ***arguendo***, the 2020 EPO had been entered properly and on notice in Maryland, as a matter of law, Lee did not commit the crime described in the statute. 18 Pa.C.S. §2904(a) requires the Commonwealth to prove that she took the children "when [she had] no privilege to do so." But in Pennsylvania, parents have an inherent privilege to custody until or unless that privilege/right is removed from them by a legal procedure that comports with due process. Under Pennsylvania law, a biological parent with joint legal and primary physical custody possesses an absolute legal "privilege" to be with their child. Since no valid order had removed this legal right/privilege from Lee on March 17, 2020, she retained it, and was not a "person without the privilege" on that date. ***Hiller v. Fausey***, 904 A.2d 875 (Pa. 2006)

**VI: The Pennsylvania Law Specifically Prevents this Prosecution**

The 2020 EPO may not be enforced in Pennsylvania criminal or civil courts because Pennsylvania law specifically excludes it from enforcement in the Commonwealth. The UCCJEA as adopted in Pennsylvania, 23 Pa. C.S. § 5425 (b), states:

> Lack of notice or opportunity to be heard. – This chapter does not govern the enforceability of a child custody determination made without notice or any opportunity to be heard.

The law could not be more clear: the Commonwealth cannot legally prosecute Lee for functioning as a protective mother to her children. Procedural due process clauses under both the United States Constitution and the Pennsylvania Constitution strictly require notice and a meaningful opportunity to be heard before a fundamental liberty interest — such as a mother's primary custody of her child — can be stripped away during a few hours in another state. Lee's Constitutional, legal, statutory and human rights did not dissolve on March 17, 2020 when a judge in Hagerstown signed an order granting a motion of which Lee had no knowledge and no opportunity to respond.

Furthermore, 18 Pa.C.S.§2904 requires a criminal mental state: the defendant must act *knowingly* or *recklessly* to defy a lawful custody order. Because the ex parte order was secured without notice or opportunity to be heard, Lee had no chance to appear, oppose it, challenge the sufficiency or legality of it, proffer evidence, challenge the jurisdiction of the MDCC, challenge the sufficiency of evidence, if any, against her, etc. It is a legal impossibility for her to have "knowingly" violated an order she was never given opportunity to challenge and to this day does not comprehend. And as to the notion that a psychologist can write a report calling the mother "unstable," not be subjected to any questioning about how she formed that opinion (or how it may affect the child's best interests, if at all), accuse the mother of making "false allegations of sexual abuse" without any court having heard, decided or declared those allegations to be "false," and obtain an immediate order stripping a mother of custody she gained in a lawful, litigated proceeding, should shock the conscience of anyone with

a basic understanding of childhood development or "good enough parenting."

Because Defendant operated under her valid, inherent custodial privilege, and because the Commonwealth cannot produce a constitutionally valid, legally sufficient order made by a court of competent jurisdiction to the contrary, the Commonwealth cannot establish a prima facie case for the elements of §2904, and the prosecution is left without any justification for this prosecution.

**Conclusion**

Defendant has not committed any crime in the Commonwealth; she did not violate any valid, enforceable order of a court of competent jurisdiction depriving her of the privilege to move with her children anywhere at any time, much less on March 17, 2020. Her pro se motion is justifiable and should be heard although it is not timely under Rule 579. Her motion is meritorious and necessary to protect her constitutional rights. Pennsylvania law supports the granting of this motion.

Respectfully Submitted this ____ day of October, 2026.

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